

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Surabhi Saraswat	Team: Team # 5	CCRB Case #: 201017053	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☒ Injury
Incident Date(s) Friday, 11/19/2010 6:40 PM	Location of Incident: 100th Precinct stationhouse	18 Mo. SOL 5/19/2012	Precinct: 100		
Date/Time CV Reported Sat, 12/11/2010 10:40 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 12/15/2010 1:02 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Vincent Calderone	00328	936038	NARCBQN
2. DT3 Anthony Hughes	03500	914430	NARCBQN

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. DT3 Ronald Luparello	06400	916088	NARCBQN
2. DT3 John Kamor	04363	930453	NARCBQN

Officer(s)	Allegation	Investigator Recommendation
A . DT3 Anthony Hughes	Abuse: Det. Anthony Hughes threatened § 87(2)(b) with the use of force.	A . Unsubstantiated
B . POM Vincent Calderone	Abuse: PO Vincent Calderone threatened § 87(2)(b) and § 87(2)(b) with the use of force.	B . Unsubstantiated
C . DT3 Anthony Hughes	Off. Language: Det. Anthony Hughes made remarks to § 87(2)(b) and § 87(2)(b) based upon their perceived sexual orientation.	C . Unsubstantiated

Case Summary

On December 11, 2010, § 87(2)(b) mother of § 87(2)(b) filed this complaint with the Internal Affairs Bureau via telephone generating IAB Log 10-61247. On November 19, 2010, § 87(2)(b) and § 87(2)(b) were walking on Ocean Promenade near Beach 115th Street in Queens when they were arrested by officers and taken to the 100th Precinct stationhouse. The following allegations resulted.

- **Allegation A-Abuse of Authority:** Det. Anthony Hughes threatened § 87(2)(b) with the use of force.
- **Allegation B-Abuse of Authority:** PO Vincent Calderone threatened § 87(2)(b) and § 87(2)(b) with the use of force.
- **Allegation C-Offensive Language:** Det. Anthony Hughes made remarks to § 87(2)(b) and § 87(2)(b) based upon their perceived sexual orientation. § 87(2)(g) it is therefore recommended that **Allegations A, B, and C** be closed as **unsubstantiated**.

Results of Investigation

Civilian Statement(s)

Complainant: § 87(2)(b)

- § 87(2)(b) § 87(2)(b) *at the time of the incident, is a white female.*

CCRB Testimony

§ 87(2)(b) provided testimony in her initial complaint (encl. 7A-B) and a telephone statement on December 16, 2010 (encl. 8). In § 87(2)(b)'s telephone statement, she informed the undersigned that she was not present during the incident.

Victim: § 87(2)(b)

- § 87(2)(b) § 87(2)(b) *at the time of the incident, is a white male, § 87(2)(b), and has dirty blond hair and blue eyes.* § 87(2)(b)

CCRB Testimony

§ 87(2)(b) provided testimony during his sworn statement on January 11, 2011 (encl. 9A-G) and his photographic identification procedure on May 31, 2011(encl. 10A-H). On November 19, 2011, at approximately 6:30 p.m., § 87(2)(b) was skateboarding down Ocean Promenade near Beach 115th Street accompanied by his friend § 87(2)(b) who was walking when they observed a 6'2", skinny, white male in old rumpled clothes, identified via investigation as PO Robert Bermudez. After turning down Beach 115th Street, two unmarked cars parked in such a manner that they blocked § 87(2)(b) and § 87(2)(b) from proceeding down Beach 115th Street. PO Bermudez ran behind § 87(2)(b) who was carrying marijuana and handcuffed him, and four officers in plainclothes exited the unmarked vehicles. A tall, skinny, white male officer with gray and black hair in his 40s, identified via investigation as Det. Ronald Luparello, handcuffed § 87(2)(b) and with the assistance of a bald, chubby black male officer who was approximately 42 years old, identified via investigation as Det. Anthony Hughes, § 87(2)(b)'s pockets were searched by officers § 87(2)(b) could not describe. Both § 87(2)(b) and § 87(2)(b) were wearing dark blue jeans and black leather jackets during the

incident. The officers informed § 87(2)(b) and § 87(2)(b) that they were being arrested because they had been observed to be in possession of narcotics.

As they waited for the prisoner van for a period of approximately 10 minutes, Det. Luparello, Det. Hughes, and a chubby, white male officer in his 20s with dirty blond hair, identified via investigation as PO Vincent Calderone, made fun of § 87(2)(b) s being afraid of going to jail. PO Calderone and Det. Hughes referred to § 87(2)(b) and § 87(2)(b) as “fresh meat;” Det. Hughes also referred to both § 87(2)(b) and § 87(2)(b) as “G boys” which § 87(2)(b) interpreted as Det. Hughes calling both of them “gay boys.” When the prisoner van arrived, both § 87(2)(b) and § 87(2)(b) were placed inside the van along with two other arrestees, identified via investigation as § 87(2)(b) and § 87(2)(b). The van was driven to the stationhouse, and all four of the arrestees in the van were brought into the holding cell. Each arrestee was taken from the cell individually to have their shoelaces removed and their fingerprints taken. While this was occurring, Det. Hughes asked § 87(2)(b) “Do you have any marijuana in your butt? Because if so, I’m going to get a dog to bite you in the ass.”

After each arrestee was fingerprinted, Det. Luparello, Det. Hughes, and a short, white male in his thirties with brown hair, identified via investigation as Det. John Kamor, entered the cell and sat down. PO Calderone stood in the doorway to the cell, and said to § 87(2)(b) and § 87(2)(b) “I bet you’re itchin’ for some pot.” When § 87(2)(b) replied, “I bet you’re itchin’ for a donut,” PO Calderone responded, “Don’t let me catch you on 116th Street, because then I’ll punch you in the face.” The officers continuously referred to § 87(2)(b) and § 87(2)(b) as “g-boys” and “Justin Bieber;” they repeatedly asked both § 87(2)(b) and § 87(2)(b) to rap for them. After noticing § 87(2)(b) s tongue ring, Det. Hughes told § 87(2)(b) “Oh-you got a tongue ring? I’m going to go get some ice and put it in your mouth. You’re going to suck some dick tonight.” Both § 87(2)(b) and § 87(2)(b) were released to their parents with their belongings. § 87(2)(b)

Photographic Identification Procedure (encl. 10A-H)

§ 87(2)(b) took part in a photographic identification procedure on May 31, 2011. When shown the photo array, § 87(2)(b) identified photo #6 as a photo of the officer who made “sexual comments” about him and § 87(2)(b) regarding the way they looked and spoke. Photo #6 was a photo of Det. Anthony Hughes.

When shown the series of single photos, § 87(2)(b) identified photo B as a photo of the “tall, older looking cop” who tightened his handcuffs; § 87(2)(b) did not allege that an officer tightened his handcuffs in his sworn statement. Photo B was a photo of Det. Ronald Luparello. § 87(2)(b) identified photo D as a photo of the officer who made several sexual comments and said that he was going to “beat me up if he ever saw me on 116.” Photo D was a photo of PO Vincent Calderone.

Victim: § 87(2)(b)

- § 87(2)(b) § 87(2)(b) at the time of the incident, is a white male, § 87(2)(b), and has brown hair and blue eyes. § 87(2)(b)

CCRB Testimony

§ 87(2)(b) provided testimony in his telephone interview on December 22, 2010 (encl. 11), his sworn statement at the CCRB on January 11, 2011 (encl. 12A-G), and his photographic identification procedure on May 31, 2011 (encl. 13A-H). § 87(2)(g)

§ 87(2)(g)

§ 87(2)(b) stated that while waiting for the prisoner van the officers joked about how § 87(2)(b) and § 87(2)(b) would get raped and beaten up in prison. After being placed in the van, § 87(2)(b) repeatedly told the officers that his hands hurt and asked the officers to fix his handcuffs. Det. Luparello, who “fixed” § 87(2)(b)’s handcuffs stated, “Alright, I’ll fix them” and made them tighter such that § 87(2)(b) had marks on both his wrists after the handcuffs were removed. According to § 87(2)(b)’s sworn statement, in the stationhouse, PO Calderone asked § 87(2)(b) “Oh—you got anything on your balls? Because if you’ve got anything on your balls, we’re gonna get the dog to bite your balls off.” In § 87(2)(b)’s sworn statement, he alleged that Det. Hughes said both him and § 87(2)(b) “looked like faggots.” However, in § 87(2)(b)’s telephone statement, he stated that both PO Calderone and Det. Hughes referred to him and § 87(2)(b) as “gay.”

Photographic Identification Procedure (encl. 13A-H)

When shown the photo array, § 87(2)(b) identified photo #6 as the “officer who made jokes at me and my friend.” Photo #6 was a photo of Det. Anthony Hughes.

When shown the series of single photos, § 87(2)(b) identified photo C as a photo of “the Boss” who laughed with all the other officers. Photo C was a photo of Det. John Kamor. § 87(2)(b) identified photo E as a photo of the officer “who tightened his § 87(2)(b)’s handcuffs and suggested that “they should put ice in his mouth because of his tongue ring.” Photo E is a photo of Det. Ronald Luparello. § 87(2)(b) identified photo F as the officer who “started all of the jokes about getting raped in prison.” Photo F is a photo of PO Vincent Calderone.

Attempts to Contact Civilians

§ 87(2)(b) and § 87(2)(b) stated that a young black male and an older Hispanic male who were also arrested § 87(2)(b) were already in the prisoner van when they were placed inside and were placed in the holding cell with them at the 100th Precinct stationhouse such that they witnessed the officers’ conversation with both of them. § 87(2)(g)

§ 87(2)(b) The undersigned referenced the COLE Directory to obtain contact numbers associated with the addresses for § 87(2)(b) and § 87(2)(b) as listed in the command log. Neither address was listed. Searches of the LexisNexis database failed to produce contact numbers or alternate addresses for both § 87(2)(b) and § 87(2)(b). Additionally, arrest reports for both individuals revealed no further contact information. A search of the New York State Inmate Locator on August 18, 2011 indicated that § 87(2)(b) and § 87(2)(b) are not incarcerated.

NYPD Statement(s):

Subject Officer: DET. ANTHONY HUGHES

- Det. Hughes, a § 87(2)(b)-old black male, is § 87(2)(b), is bald, and has brown eyes.
- On November 19, 2010, Det. Hughes worked from 1:00 p.m. to 9:33 p.m. as the operator of the prisoner van. Det. Hughes was partnered with Det. Kamor; they were assigned to an unmarked blue Ford van, § 87(2)(e), § 87(2)(b). Det. Hughes was in plainclothes.

Memo Book (encl. 14A-B)

At 6:55 p.m., Det. Hughes noted that he was at Beach 115th Street and the Boardwalk. He next noted at 7:00 p.m. that he was en route to the 100th Precinct stationhouse. At 7:15 p.m., Det. Hughes was at the stationhouse with Det. Kevin Yeh. At 10:10 p.m., he was en route to Queens Central Booking.

CCRB Testimony

Det. Hughes was interviewed at the CCRB on April 28, 2011 (encl. 15A-B). He had no independent recollection of the incident even upon being given additional details about the incident such as descriptions of the clothing § 87(2)(b) and § 87(2)(b) were carrying and the offense for which they were arrested. Furthermore, Det. Hughes did not recognize either § 87(2)(b) or § 87(2)(b) when shown photographs of both individuals. Det. Hughes explained that he would have been called to the area over point to point radio by a supervisor after an arrest was made in order to transport any prisoners to the stationhouse. Det. Hughes is usually assigned to the prisoner van and processes thirty to forty arrests per week.

Det. Hughes did not recall telling § 87(2)(b) that he would “get a dog to bite him in the ass” and did not recall witnessing another officer make such a remark. Det. Hughes did not recall telling § 87(2)(b) “Oh-you got a tongue ring? I’m going to go get some ice and put it in your mouth. You’re going to suck some dick tonight;” Det. Hughes did not recall hearing another officer make that remark. Det. Hughes did not recall hearing PO Calderone or any other officer tell § 87(2)(b) and § 87(2)(b) “Don’t let me catch you on 116th Street, because then I’ll punch you in the face.” Det. Hughes did not recall calling § 87(2)(b) and § 87(2)(b) “faggots;” he also did not observe any officers do so.

Subject Officer: PO VINCENT CALDERONE

- PO Calderone, a § 87(2)(b)-old white male, is § 87(2)(b), and has brown hair and blue eyes.
- On November 19, 2010, PO Calderone worked from 12:27 p.m. to 9:00 p.m. as the operator of a chase auto. PO Calderone was partnered with Det. Luparello; they were assigned to an unmarked black Kia sedan. PO Calderone was in plainclothes.

Memo Book (encl. 16A-C)

At 6:45 p.m., PO Calderone noted that 2 individuals were arrested in the vicinity of Beach 70th Street and Beach Channel Drive. He next noted at 7:15 p.m. that he was at the 100th Precinct stationhouse regarding arrest processing. At 10:15 p.m., PO Calderone left the 100th Precinct stationhouse.

CCRB Testimony

PO Calderone was interviewed at the CCRB on May 3, 2011 (encl. 17A-B). PO Calderone had no independent recollection even upon being given addition details regarding the incident such as descriptions of the clothing both individuals were wearing, the offense for which they were arrested, and a description of their activities when they were arrested as well as the incident location. Additionally, PO Calderone did not recognize either § 87(2)(b) and § 87(2)(b) when shown photographs of both individuals. PO Calderone also stated that he was not involved with processing § 87(2)(b) and § 87(2)(b)s arrests at the 100th Precinct stationhouse.

PO Calderone did not recall calling § 87(2)(b) and § 87(2)(b) “g-boys” or “fresh meat” and did not recall hearing any other officer do so. PO Calderone did not recall saying,

“Don’t let me catch you on 116th Street, or I’ll punch you in the face” and did not recall hearing any other officer make that remark. PO Calderone did not recall threatening to “get a dog to bite [anyone’s] balls off” and did not recall hearing another officer make such a comment. PO Calderone did not recall calling § 87(2)(b) and § 87(2)(b) “faggots” and did not recall hearing another officer do so. PO Calderone did not recall hearing Det. Hughes or another officer threaten to “get a dog to bite § 87(2)(b) in the ass.” PO Calderone did not recall hearing Det. Hughes or any other officer tell § 87(2)(b) “Oh-you got a tongue ring? I’m going to go get some ice and put it in your mouth. You’re going to suck some dick tonight.”

Subject Officer: DET. RONALD LUPARELLO

- Det. Luparello, a § 87(2)(b)-old white male, is § 87(2)(b), and has black hair and brown eyes.
- On November 19, 2010, Det. Luparello worked from 12:27 p.m. to 9:00 p.m. as a narcotics enforcement officer in the 100th and 101st Precincts. Det. Luparello was partnered with PO Calderone. They were assigned to an unmarked black Kia sedan, § 87(2)(e), § 87(2)(f). Det. Luparello was in plainclothes.

Memo Book (encl. 18A-C)

At 6:00 p.m., Det. Luparello noted that he was in the vicinity of Rockaway Boulevard and Beach 116th Street regarding enforcement. He next noted at 6:45 p.m. that 2 individuals had been arrested. At 7:15 p.m., Det. Luparello arrived at the 100th Precinct stationhouse.

CCRB Testimony

Det. Luparello was interviewed at the CCRB on July 7, 2011 (encl. 19A-B). He had no independent recollection of the incident even after viewing pictures of § 87(2)(b) and § 87(2)(b) and being provided with additional details regarding the incident such as the offenses for which both were arrested, descriptions of the clothing they were wearing, and the circumstances surrounding their arrest.

Det. Luparello did not recall threatening § 87(2)(b) and § 87(2)(b) with force and did not recall hearing any other officer do so. Det. Luparello did not recall making any of the alleged offensive statements and did not recall any other officer doing so in his hearing.

Witness Officer: DET. JOHN KAMOR

- Det. Kamor, a § 87(2)(b) white male, is § 87(2)(b), and has brown hair and hazel eyes.
- On November 19, 2010, Det. Kamor worked from 12:27 p.m. to 9:00 p.m. He was assigned to the prisoner van as a part of the narcotics enforcement team in the 100th and 101st Precincts. Det. Kamor was partnered with Det. Hughes. They were assigned to an unmarked blue Ford cargo van. Det. Kamor was in plainclothes.

Memo Book (encl. 20A-C)

Det. Kamor noted in his memo book at 6:55 p.m. that he was at Beach 115th Street and the Boardwalk picking up a prisoner. At 7:00 p.m., Det. Kamor noted that he was en route to the 100th Precinct stationhouse; at 7:10 p.m., he arrived at the 100th Precinct stationhouse.

CCRB Testimony

Det. Kamor was interviewed at the CCRB on July 28, 2011 (encl. 21A-B). Det. Kamor had no independent recollection of the incident even upon being given additional details regarding the incident and being showed photographs of § 87(2)(b) and § 87(2)(b).

Det. Kamor did not recall witnessing either PO Calderone or Det. Hughes make any offensive comments, did not recall making any offensive comments himself, and did not recall observing any other officer make offensive comments. Det. Kamor did not recall either PO Calderone or Det. Hughes make any threats of force, did not recall making any such comments himself, and did not recall observing any other officer make such comments.

NYPD Document(s)

Tactical Plan (encl. 22)

The tactical plan for the module covering the 100th and 101st Precincts indicates that Det. Hughes and Det. Kamor were partnered together and assigned to the prisoner van. The plan further indicates that Det. Luparello and PO Calderone were partnered together and assigned to one of the chase autos.

Prisoner Holding Pen Roster (encl. 23)

The excerpt of the 100th Precinct prisoner holding pen roster indicates that both § 87(2)(b) and § 87(2)(b) were in the holding cell during the incident.

Command Log (encl. 24)

The excerpt of the 100th Precinct command log shows the names and addresses of the witnesses to the incident, § 87(2)(b) and § 87(2)(b).

Summons/Arrest for Incident and Disposition

- Both § 87(2)(b) and § 87(2)(b) were issued desk appearance tickets (encl. 26B-F).

Status of Civil Proceedings

- § 87(2)(b), § 87(2)(b), and § 87(2)(b) have not filed a Notice of Claim with the City of New York as of August 18, 2011 with regard to the incident (encl. 27B-F).

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

§ 87(2)(b)

Civilian(s) CCRB History

- This is the first CCRB complaint filed by § 87(2)(b), § 87(2)(b), and § 87(2)(b) (encl. 3-5).

Subject Officer(s) CCRB History

- Det. Hughes has been a member of the service for 17 years and there are no substantiated CCRB allegations against him (encl. 1).
- PO Calderone has been a member of the service for 6 years and there is 1 substantiated CCRB allegation against him (encl. 2).

- In CCRB Case No. 200609865, PO Calderone was substantiated for refusing to process a civilian complaint. The board recommended charges, and the NYPD issued PO Calderone instructions.

Conclusion

Identification of Subject Officer(s)

§ 87(2)(b) alleged that a bald, chubby black male officer who was approximately 42 years old threatened him with force and made offensive comments to him. § 87(2)(g)

§ 87(2)(b) alleged that a chubby, white male officer in his 20s with dirty blond hair threatened him and § 87(2)(b) with force. § 87(2)(g)

Allegations Not Pleaded

§ 87(2)(g)

Investigative Findings and Recommendations

Allegation A-Abuse of Authority: Det. Anthony Hughes threatened § 87(2)(b) with the use of force.

§ 87(2)(b) alleged that Det. Hughes threatened to “get a dog to bite [him] in the ass.” Det. Hughes had no independent recollection of the incident and did not recall making this statement. None of the officers interviewed recalled any officer making such a threat. § 87(2)(g)

It is therefore recommended that **Allegation A** be closed as **unsubstantiated**.

Allegation B-Abuse of Authority: PO Vincent Calderone threatened § 87(2)(b) and § 87(2)(b) with the use of force.

Both § 87(2)(b) and § 87(2)(b) alleged that PO Calderone threatened to punch them in the face if he saw them on the street. PO Calderone did not have an independent recollection of the incident and did not recall making any such threat. None of the officers interviewed recalled any

officer making such a threat. § 87(2)(g) It is therefore recommended that **Allegation B** be closed as **unsubstantiated**.

Allegation C-Offensive Language: Det. Anthony Hughes made remarks to § 87(2)(b) and § 87(2)(b) based upon their perceived sexual orientation. § 87(2)(b) alleged that Det. Hughes told him, “Oh-you got a tongue ring? I’m going to go get some ice and put it in your mouth. You’re going to suck some dick tonight.” § 87(2)(b) further stated that Det. Hughes said both him and § 87(2)(b) “looked like faggots.” Det. Hughes had no independent recollection of the incident and did not recall making these statements. None of the officers interviewed recalled any officer making such statements. § 87(2)(g) It is therefore recommended that **Allegation C** be closed as **unsubstantiated**.

Team: _____

Investigator:	_____	_____	_____
	Signature	Print	Date

Supervisor:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date

Reviewer:	_____	_____	_____
	Title/Signature	Print	Date